



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2833: mandatory reporting; violent threats; minors

KESHEL FLOOR AMENDMENT

1. Removes conflicting language regarding who the mandatory reporting requirement applies to.

KESHEL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2833
(Reference to JUDICIARY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section. 1. Section 8-201, Arizona Revised Statutes, is amended
3 to read:

4 8-201. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Abandoned" means the failure of the parent to provide
7 reasonable support and to maintain regular contact with the child,
8 including providing normal supervision. Abandoned includes a judicial
9 finding that a parent has made only minimal efforts to support and
10 communicate with the child. Failure to maintain a normal parental
11 relationship with the child without just cause for a period of six months
12 constitutes prima facie evidence of abandonment.

13 2. "Abuse":

14 (a) Means the infliction or allowing of physical injury, impairment
15 of bodily function or disfigurement or the infliction of or allowing
16 another person to cause serious emotional damage as evidenced by severe

1 anxiety, depression, withdrawal or untoward aggressive behavior and which
2 emotional damage is diagnosed by a medical doctor or psychologist and is
3 caused by the acts or omissions of an individual who has the care, custody
4 and control of a child, including an employee of a child welfare agency
5 where a child is placed that is licensed by and contracted with the
6 department.

7 (b) Includes:

8 (i) Inflicting or allowing sexual abuse pursuant to section
9 13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual
10 assault pursuant to section 13-1406, molestation of a child pursuant to
11 section 13-1410, commercial sexual exploitation of a minor pursuant to
12 section 13-3552, sexual exploitation of a minor pursuant to section
13 13-3553, incest pursuant to section 13-3608 or child sex trafficking
14 pursuant to section 13-3212.

15 (ii) Physical injury that results from allowing a child to enter or
16 remain in any structure or vehicle in which volatile, toxic or flammable
17 chemicals are found or equipment is possessed by any person for the
18 purpose of manufacturing a dangerous drug as defined in section 13-3401.

19 (iii) Unreasonable confinement of a child.

20 3. "Adult" means a person who is eighteen years of age or older.

21 4. "Adult court" means the appropriate justice court, municipal
22 court or criminal division of the superior court that has jurisdiction to
23 hear proceedings concerning offenses committed by juveniles as provided in
24 sections 8-327 and 13-501.

25 5. "Award" or "commit" means to assign legal custody.

26 6. "Child", "youth" or "juvenile" means an individual who is under
27 eighteen years of age.

28 7. "Complaint" means a written statement of the essential facts
29 constituting a public offense that is any of the following:

30 (a) Made on an oath before a judge or commissioner of the superior
31 court or an authorized juvenile hearing officer.

32 (b) Made pursuant to section 13-3903.

33 (c) Accompanied by an affidavit of a law enforcement officer or
34 employee that swears on information and belief to the accuracy of the
35 complaint pursuant to section 13-4261.

36 8. "Criminal conduct allegation" means an allegation of conduct by
37 a parent, guardian or custodian of a child or an adult member of the
38 victim's household that, if true, would constitute any of the following:

39 (a) A violation of section 13-3623 involving child abuse.

40 (b) A felony offense that constitutes domestic violence as defined
41 in section 13-3601.

42 (c) A violation of section 13-1404 or 13-1406 involving a minor.

43 (d) A violation of section 13-1405, 13-1410 or 13-1417.

44 (e) Any other act of abuse that is classified as a felony.

45 (f) An offense that constitutes domestic violence as defined in
46 section 13-3601 and that involves a minor who is a victim of or was in
47 imminent danger during the domestic violence.

1 9. "Custodian" means a person, other than a parent or legal
2 guardian, who stands in loco parentis to the child or a person to whom
3 legal custody of the child has been given by order of the juvenile court.

4 10. "DCS report" means a communication received by the centralized
5 intake hotline that alleges child abuse or neglect and that meets the
6 criteria for a report as prescribed in section 8-455.

7 11. "Delinquency hearing" means a proceeding in the juvenile court
8 to determine whether a juvenile has committed a specific delinquent act as
9 set forth in a petition.

10 12. "Delinquent act" means an act by a juvenile that if committed
11 by an adult would be a criminal offense or a petty offense, a violation of
12 any law of this state, or of another state if the act occurred in that
13 state, or a law of the United States, or a violation of any law that can
14 only be violated by a minor and that has been designated as a delinquent
15 offense, or any ordinance of a city, county or political subdivision of
16 this state defining crime. Delinquent act does not include an offense
17 under section 13-501, subsection A or B if the offense is filed in adult
18 court. Any juvenile who is prosecuted as an adult or who is remanded for
19 prosecution as an adult shall not be adjudicated as a delinquent juvenile
20 for the same offense.

21 13. "Delinquent juvenile" means a child who is adjudicated to have
22 committed a delinquent act.

23 14. "Department" means the department of child safety.

24 15. "Dependent child":

25 (a) Means a child who is adjudicated to be:

26 (i) In need of proper and effective parental care and control and
27 who has no parent or guardian, or one who has no parent or guardian
28 willing to exercise or capable of exercising such care and control.

29 (ii) Destitute or who is not provided with the necessities of life,
30 including adequate food, clothing, shelter or medical care.

31 (iii) A child whose home is unfit by reason of abuse, neglect,
32 cruelty or depravity by a parent, a guardian or any other person having
33 custody or care of the child.

34 (iv) Under eight years of age and who is found to have committed an
35 act that would result in adjudication as a delinquent juvenile or
36 incorrigible child if committed by an older juvenile or child.

37 (v) Incompetent or not restorable to competency and who is alleged
38 to have committed a serious offense as defined in section 13-706.

39 (b) Does not include a child who in good faith is being furnished
40 Christian Science treatment by a duly accredited practitioner if none of
41 the circumstances described in subdivision (a) of this paragraph exists.

42 16. "Detention" means the temporary confinement of a juvenile who
43 requires secure care in a physically restricting facility that is
44 completely surrounded by a locked and physically secure barrier with
45 restricted ingress and egress for the protection of the juvenile or the
46 community pending court disposition or as a condition of probation.

47 17. "Director" means the director of the department.

48 18. "Health professional" has the same meaning prescribed in
49 section 32-3201.

1 19. "Incorrigible child" means a child who:

2 (a) Is adjudicated as a child who refuses to obey the reasonable
3 and proper orders or directions of a parent, guardian or custodian and who
4 is beyond the control of that person.

5 (b) Is habitually truant from school as defined in section 15-803,
6 subsection C.

7 (c) Is a runaway from the child's home or parent, guardian or
8 custodian.

9 (d) Habitually behaves in such a manner as to injure or endanger
10 the morals or health of self or others.

11 (e) Commits any act constituting an offense that can only be
12 committed by a minor and that is not designated as a delinquent act.

13 (f) Fails to obey any lawful order of a court of competent
14 jurisdiction given in a noncriminal action.

15 20. "Independent living program" includes a residential program
16 with supervision of less than twenty-four hours a day.

17 21. "Juvenile court" means the juvenile division of the superior
18 court when exercising its jurisdiction over children in any proceeding
19 relating to delinquency, dependency or incorrigibility.

20 22. "Law enforcement officer" means a peace officer, sheriff,
21 deputy sheriff, municipal police officer or constable.

22 23. "Medical director of a mental health agency":

23 (a) Means a psychiatrist, or licensed physician experienced in
24 psychiatric matters, who is designated in writing by the governing body of
25 the agency as the person in charge of the medical services of the agency,
26 or a psychiatrist designated by the governing body to act for the
27 director.

28 (b) Includes the superintendent of the state hospital.

29 24. "Mental health agency" means any private or public facility
30 that is licensed by this state as a mental health treatment agency, a
31 psychiatric hospital, a psychiatric unit of a general hospital or a
32 residential treatment center for emotionally disturbed children and that
33 uses secure settings or mechanical restraints.

34 25. "Neglect" or "neglected" means:

35 (a) The inability or unwillingness of a parent, guardian or
36 custodian of a child to provide that child with supervision, food,
37 clothing, shelter or medical care if that inability or unwillingness
38 causes substantial risk of harm to the child's health or welfare, except
39 if the inability of a parent, guardian or custodian to provide services to
40 meet the needs of a child with a disability or chronic illness is solely
41 the result of the unavailability of reasonable services.

42 (b) Allowing a child to enter or remain in any structure or vehicle
43 in which volatile, toxic or flammable chemicals are found or equipment is
44 possessed by any person with the intent and for the purpose of
45 manufacturing a dangerous drug as defined in section 13-3401.

46 (c) A determination by a health professional that a newborn infant
47 was exposed prenatally to a drug or substance listed in section 13-3401
48 and that this exposure was not the result of a medical treatment
49 administered to the mother or the newborn infant by a health professional.

1 This subdivision does not expand a health professional's duty to report
2 neglect based on prenatal exposure to a drug or substance listed in
3 section 13-3401 beyond the requirements prescribed pursuant to section
4 13-3620, subsection ~~[F]~~[E]. The determination by the health professional
5 shall be based on one or more of the following:

6 (i) Clinical indicators in the prenatal period including maternal
7 and newborn presentation.

8 (ii) History of substance use or abuse.

9 (iii) Medical history.

10 (iv) Results of a toxicology or other laboratory test on the mother
11 or the newborn infant.

12 (d) Diagnosis by a health professional of an infant under one year
13 of age with clinical findings consistent with fetal alcohol syndrome or
14 fetal alcohol effects.

15 (e) Deliberate exposure of a child by a parent, guardian or
16 custodian to sexual conduct as defined in section 13-3551 or to sexual
17 contact, oral sexual contact or sexual intercourse as defined in section
18 13-1401, bestiality as prescribed in section 13-1411 or explicit sexual
19 materials as defined in section 13-3507.

20 (f) Any of the following acts committed by the child's parent,
21 guardian or custodian with reckless disregard as to whether the child is
22 physically present:

23 (i) Sexual contact as defined in section 13-1401.

24 (ii) Oral sexual contact as defined in section 13-1401.

25 (iii) Sexual intercourse as defined in section 13-1401.

26 (iv) Bestiality as prescribed in section 13-1411.

27 26. "Newborn infant" means a child who is under thirty days of age.

28 27. "Petition" means a written statement of the essential facts
29 that allege delinquency, incorrigibility or dependency.

30 28. "Prevention" means the creation of conditions, opportunities
31 and experiences that encourage and develop healthy, self-sufficient
32 children and that occur before the onset of problems.

33 29. "Protective supervision" means supervision that is ordered by
34 the juvenile court of children who are found to be dependent or
35 incorrigible.

36 30. "Qualified young adult" means a former dependent child who is
37 at least eighteen years of age and not over twenty-one years of age, who
38 meets the criteria for an extended foster care program pursuant to section
39 8-521.02 and who signs a voluntary agreement to participate in the
40 program.

41 31. "Referral" means a report that is submitted to the juvenile
42 court and that alleges that a child is dependent or incorrigible or that a
43 juvenile has committed a delinquent or criminal act.

44 32. "Secure care" means confinement in a facility that is
45 completely surrounded by a locked and physically secure barrier with
46 restricted ingress and egress.

47 33. "Serious emotional injury" means an injury that is diagnosed by
48 a medical doctor or a psychologist and that does any one or a combination
49 of the following:

1 (a) Seriously impairs mental faculties.

2 (b) Causes serious anxiety, depression, withdrawal or social
3 dysfunction behavior to the extent that the child suffers dysfunction that
4 requires treatment.

5 (c) Is the result of sexual abuse pursuant to section 13-1404,
6 sexual conduct with a minor pursuant to section 13-1405, sexual assault
7 pursuant to section 13-1406, molestation of a child pursuant to section
8 13-1410, child sex trafficking pursuant to section 13-3212, commercial
9 sexual exploitation of a minor pursuant to section 13-3552, sexual
10 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
11 section 13-3608.

12 34. "Serious physical injury" means an injury that is diagnosed by
13 a medical doctor and that does any one or a combination of the following:

14 (a) Creates a reasonable risk of death.

15 (b) Causes serious or permanent disfigurement.

16 (c) Causes significant physical pain.

17 (d) Causes serious impairment of health.

18 (e) Causes the loss or protracted impairment of an organ or limb.

19 (f) Is the result of sexual abuse pursuant to section 13-1404,
20 sexual conduct with a minor pursuant to section 13-1405, sexual assault
21 pursuant to section 13-1406, molestation of a child pursuant to section
22 13-1410, child sex trafficking pursuant to section 13-3212, commercial
23 sexual exploitation of a minor pursuant to section 13-3552, sexual
24 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
25 section 13-3608.

26 35. "Shelter care" means the temporary care of a child in any
27 public or private facility or home that is licensed by this state and that
28 offers a physically nonsecure environment that is characterized by the
29 absence of physically restricting construction or hardware and that
30 provides the child access to the surrounding community.

31 36. "Standardized hotline assessment tool" means any written tool
32 used to make a determination that the allegation of abuse or neglect that
33 is the subject of a report received pursuant to section 8-455 involves
34 conduct that warrants investigation by the department pursuant to section
35 8-456 or 8-471.

36 37. "Young adult administrative review" means an administrative
37 review of a voluntary extended foster care case plan with the qualified
38 young adult, the department's case specialist or designee, an independent
39 party who is not responsible for the case management of or the delivery of
40 services to the qualified young adult and any other individual the young
41 adult invites. >>

42 Sec. 2. Section 13-3620, Arizona Revised Statutes, is amended to
43 read:

44 13-3620. Duty to report violent threats by minors and abuse,
45 physical injury, neglect and denial or deprivation
46 of medical or surgical care or nourishment of
47 minors; medical records; exception; violation;
48 classification; definitions

1 A. Any person who reasonably believes that a minor is or has been
2 the victim of ~~{{(A THREAT OF DEATH OR SERIOUS PHYSICAL INJURY BY A MINOR OR~~
3 ~~OF}}~~ physical injury, abuse, child abuse, a reportable offense or neglect
4 that appears to have been inflicted on the minor by other than accidental
5 means or that is not explained by the available medical history as being
6 accidental in nature or who reasonably believes there has been a denial or
7 deprivation of necessary medical treatment or surgical care or nourishment
8 with the intent to cause or allow the death of an infant who is protected
9 under section 36-2281 shall immediately report or cause reports to be made
10 of this information to a peace officer, to the department of child safety
11 or to a tribal law enforcement or social services agency for any Indian
12 minor who resides on an Indian reservation, except if the report concerns
13 a person who does not have care, custody or control of the minor, the
14 report shall be made to a peace officer only. A member of the clergy, a
15 Christian Science practitioner or a priest who has received a confidential
16 communication or a confession in that person's role as a member of the
17 clergy, as a Christian Science practitioner or as a priest in the course
18 of the discipline enjoined by the church to which the member of the
19 clergy, the Christian Science practitioner or the priest belongs may
20 withhold reporting of the communication or confession if the member of the
21 clergy, the Christian Science practitioner or the priest determines that
22 it is reasonable and necessary within the concepts of the religion. This
23 exemption applies only to the communication or confession and not to
24 personal observations the member of the clergy, the Christian Science
25 practitioner or the priest may otherwise make of the minor. For the
26 purposes of this subsection, "person" means:

27 1. Any physician, physician's assistant, optometrist, dentist,
28 osteopathic physician, chiropractor, podiatrist, behavioral health
29 professional, nurse, psychologist, counselor or social worker who develops
30 the reasonable belief in the course of treating a patient.

31 2. Any peace officer, child welfare investigator, child safety
32 worker, member of the clergy, priest or Christian Science practitioner.

33 3. The parent, stepparent or guardian of the minor.

34 4. School personnel, including substitute teachers, domestic
35 violence victim advocates or sexual assault victim advocates who develop
36 the reasonable belief in the course of their employment.

37 5. Any other person who has responsibility for the care or
38 treatment of the minor.

39 6. Any person who is employed as the immediate or next higher level
40 supervisor to or administrator of a person who is listed in paragraph 1,
41 2, 4 or 5 of this subsection and who develops the reasonable belief in the
42 course of the supervisor's or administrator's employment, except that if
43 the supervisor or administrator reasonably believes that the report has
44 been made by a person who is required to report pursuant to paragraph 1,
45 2, 4 or 5 of this subsection, the supervisor or administrator is not
46 required to report pursuant to this paragraph.

47 7. Any member of a school district governing board or charter
48 school governing body.

1 [B. ANY PERSON WHO IS LISTED IN SUBSECTION A, PARAGRAPH 4 OF THIS
2 SECTION AND WHO REASONABLY BELIEVES THAT A MINOR IS OR HAS BEEN THE
3 RECIPIENT OF A TRUE THREAT OF DEATH OR SERIOUS PHYSICAL INJURY BY ANOTHER
4 MINOR SHALL MAKE A REPORT PURSUANT TO SUBSECTION A OF THIS SECTION. FOR
5 THE PURPOSES OF THIS SUBSECTION, "SERIOUS PHYSICAL INJURY" HAS THE SAME
6 MEANING PRESCRIBED IN SECTION 13-105.]

7 ~~[B.]~~[C.] A report is not required under this section either:

8 1. For conduct prescribed by sections 13-1404 and 13-1405 if the
9 conduct involves only minors who are fourteen, fifteen, sixteen or
10 seventeen years of age and there is nothing to indicate that the conduct
11 is other than consensual.

12 2. If a minor is of elementary school age, the physical injury
13 occurs accidentally in the course of typical playground activity during a
14 school day, occurs on the premises of the school that the minor attends
15 and is reported to the legal parent or guardian of the minor and the
16 school maintains a written record of the incident.

17 ~~[C.]~~[D.] If a physician, psychologist or behavioral health
18 professional receives a statement from a person other than a parent,
19 stepparent, guardian or custodian of the minor during the course of
20 providing sex offender treatment that is not court ordered or that does
21 not occur while the offender is incarcerated in the state department of
22 corrections or the department of juvenile corrections, the physician,
23 psychologist or behavioral health professional may withhold the reporting
24 of that statement if the physician, psychologist or behavioral health
25 professional determines it is reasonable and necessary to accomplish the
26 purposes of the treatment.

27 ~~[D.]~~[E.] Reports shall be made immediately either electronically or
28 by telephone. The reports shall contain the following information, if
29 known:

30 1. The names and addresses of the minor and the minor's parents or
31 the person or persons having custody of the minor.

32 2. The minor's age and the nature and extent of the minor's abuse,
33 child abuse, physical injury or neglect, including any evidence of
34 previous abuse, child abuse, physical injury or neglect.

35 3. Any other information that the person believes might be helpful
36 in establishing the cause of the abuse, child abuse, physical injury or
37 neglect.

38 ~~[E.]~~[F.] A health care professional who is regulated pursuant to
39 title 32 and who, after a routine newborn physical assessment of a newborn
40 infant's health status or following notification of positive toxicology
41 screens of a newborn infant, reasonably believes that the newborn infant
42 may be affected by the presence of alcohol or a drug listed in section
43 13-3401 shall immediately report this information, or cause a report to be
44 made, to the department of child safety. For the purposes of this
45 subsection, "newborn infant" means a newborn infant who is under thirty
46 days of age.

47 ~~[F.]~~[G.] Any person other than one required to report or cause
48 reports to be made under subsection A of this section who reasonably
49 believes that a minor is or has been a victim of abuse, child abuse,

1 physical injury, a reportable offense or neglect may report the
2 information to a peace officer or to the department of child safety,
3 except if the report concerns a person who does not have care, custody or
4 control of the minor, the report shall be made to a peace officer only.

5 ~~[G.]~~[H.] A person who has custody or control of medical records of
6 a minor for whom a report is required or authorized under this section
7 shall make the records, or a copy of the records, available to a peace
8 officer, child welfare investigator or child safety worker investigating
9 the minor's neglect, child abuse, physical injury or abuse on written
10 request for the records signed by the peace officer, child welfare
11 investigator or child safety worker. Records disclosed pursuant to this
12 subsection are confidential and may be used only in a judicial or
13 administrative proceeding or investigation resulting from a report
14 required or authorized under this section.

15 ~~[H.]~~[I.] When a report is received:

16 1. By a peace officer, the officer shall immediately notify the
17 department of child safety.

18 2. Notwithstanding any other statute, by the department OF CHILD
19 SAFETY, the department shall immediately notify a peace officer in the
20 appropriate jurisdiction.

21 3. By a school resource officer or school safety officer, the
22 officer shall immediately notify a law enforcement agency in the
23 appropriate jurisdiction and shall submit to the local law enforcement
24 agency all information relating to the report for the purposes of the law
25 enforcement agency investigating the reported conduct.

26 ~~[I.]~~[J.] Any person who is required to receive reports pursuant to
27 subsection A of this section may take or cause to be taken photographs of
28 the minor and the vicinity involved. Forensic interviews or medical
29 examinations, or both, of the involved minor may be performed.

30 ~~[J.]~~[K.] A person who furnishes a report, information or records
31 required or authorized under this section, or a person who participates in
32 a judicial or administrative proceeding or investigation resulting from a
33 report, information or records required or authorized under this section,
34 is immune from any civil or criminal liability by reason of that action
35 unless the person acted with malice or unless the person has been charged
36 with or is suspected of abusing or neglecting the child or children in
37 question.

38 ~~[K.]~~[L.] Except for the attorney client privilege or the privilege
39 under subsection ~~[I.]~~[M] of this section, no privilege applies to any:

40 1. Civil or criminal litigation or administrative proceeding in
41 which a minor's neglect, dependency, abuse, child abuse, physical injury
42 or abandonment is an issue.

43 2. Judicial or administrative proceeding resulting from a report,
44 information or records submitted pursuant to this section.

45 3. Investigation of a minor's child abuse, physical injury, neglect
46 or abuse conducted by a peace officer or the department of child safety.

47 ~~[L.]~~[M.] In any civil or criminal litigation in which a child's
48 neglect, dependency, physical injury, abuse, child abuse or abandonment is
49 an issue, a member of the clergy, a Christian Science practitioner or a

1 priest shall not, without his consent, be examined as a witness concerning
2 any confession made to him in his role as a member of the clergy, a
3 Christian Science practitioner or a priest in the course of the discipline
4 enjoined by the church to which he belongs. This subsection does not
5 discharge a member of the clergy, a Christian Science practitioner or a
6 priest from the duty to report pursuant to subsection A of this section.

7 ~~[M.]~~[N.] If psychiatric records are requested pursuant to
8 subsection ~~[G]~~[H] of this section, the custodian of the records shall
9 notify the attending psychiatrist, who may excise from the records, before
10 they are made available:

- 11 1. Personal information about individuals other than the patient.
- 12 2. Information regarding specific diagnosis or treatment of a
13 psychiatric condition, if the attending psychiatrist certifies in writing
14 that release of the information would be detrimental to the patient's
15 health or treatment.

16 ~~[N.]~~[O.] If any portion of a psychiatric record is excised pursuant
17 to subsection ~~[M]~~[N] of this section, a court, on application of a peace
18 officer, child welfare investigator or child safety worker, may order that
19 the entire record or any portion of the record that contains information
20 relevant to the reported abuse, child abuse, physical injury or neglect be
21 made available to the peace officer, child welfare investigator or child
22 safety worker investigating the abuse, child abuse, physical injury or
23 neglect.

24 ~~[O.]~~[P.] A student who is identified as a potential victim of a
25 reportable offense may be interviewed only as provided by the local county
26 protocol that is adopted pursuant to section 8-817. This subsection does
27 not prevent a school resource officer or a school safety officer from
28 either:

- 29 1. Receiving a voluntary report of a reportable offense from a
30 student who is an alleged victim.
- 31 2. Asking a student minimal follow-up questions that are necessary
32 and authorized by the county protocol.

33 ~~[P.]~~[Q.] A report to a school resource officer or a school safety
34 officer does not satisfy the reporting requirement prescribed by this
35 section.

36 ~~[Q.]~~[R.] A person who violates this section is guilty of a class 1
37 misdemeanor, except if the failure to report involves a reportable
38 offense, the person is guilty of a class 6 felony.

39 ~~[R.]~~[S.] For the purposes of this section:

- 40 1. "Abuse" has the same meaning prescribed in section 8-201.
- 41 2. "Child abuse" means child abuse pursuant to section 13-3623.
- 42 3. "Neglect" has the same meaning prescribed in section 8-201.
- 43 4. "Reportable offense" means any of the following:
 - 44 (a) Any offense listed in chapters 14 and 35.1 of this title or
45 section 13-3506.
 - 46 (b) Surreptitious photographing, videotaping, filming or digitally
47 recording or viewing a minor pursuant to section 13-3019.
 - 48 (c) Child sex trafficking pursuant to section 13-3212.
 - 49 (d) Incest pursuant to section 13-3608.

House Amendments to H.B. 2833

- 1 (e) Unlawful mutilation pursuant to section 13-1214.
- 2 5. "School safety officer" has the same meaning prescribed in
- 3 section 15-514.
- 4 6. "Student" means a student who is enrolled in a kindergarten
- 5 program or any of grades one through twelve.

- 6 Enroll and engross to conform
- 7 Amend title to conform

RACHEL KESHEL

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